

TENTATIVE RULING FOR MAY 27, 2026

Department R12 - Judge Kory Mathewson

Brandon Jackson v. Upland Evergreen SPE LLC, et al – CIVRS2505582

Motion: Demurrer to Complaint

Movant: Defendant WP Fund V Upland, LLC

Respondent: Plaintiff Brandon Jackson

RULING:

- (1) SUSTAIN Defendant's demurrer to the First Cause of Action for Violation of Penal Code section 396, without leave to amend;
- (2) SUSTAIN Defendant's demurrer to the Second Cause of Action for Negligence Per Se, without leave to amend;
- (3) SUSTAIN Defendant's demurrer to the Third Cause of Action for Violation of the UCL, with leave to amend;
- (4) SUSTAIN Defendant's demurrer to the Fourth Cause of Action for Breach of the Implied Covenant of Good Faith and Fair Dealing, with leave to amend;
- (5) SUSTAIN Defendant's demurrer to the Fifth Cause of Action for Unjust Enrichment, without leave to amend; and
- (6) SUSTAIN Defendant's demurrer to the Sixth Cause of Action for Negligence, without leave to amend.

Defendant - to provide Order(s) and give Notice.

Plaintiff's Opposition is untimely. Under Code of Civil Procedure section 1005, subdivision (b), all papers opposing a motion so noticed shall be filed with the Court and a copy served on each party at least nine court days before the hearing. Nevertheless, Defendant timely filed a reply brief directed to the merits and the Court treats any issue with service as being waived (*Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 59 (*Clark*) [concluding lack of timely service is waived when the party discusses merits despite its objection]).

Meet and Confer

Defendant's Counsel, Christopher A. Johnson, testifies that on November 26, 2025, he met and conferred letter with Plaintiff's Counsel, but were unable to reach a resolution. (Johnson Decl. ¶ 2.)

DEMURRER

Statute of Limitations

i. Penal Code Section 396

In general, a violation of a state statute does not necessarily give rise to a private cause of action unless the Legislature has "manifested an intent to create such a private cause of action" under the statute. (*Lu v. Hawaiian Gardens Casino, Inc.* (2010) 50 Cal.4th 592, 596 (*Lu*).) "[A] statute creates a private right of action only if the statutory language or legislative history affirmatively indicates such an intent. That intent need not necessarily be expressed explicitly, but if not it must be strongly implied." (*Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal. 3d 287, 305.) For instance, the statute may expressly state that a person has or is liable for a cause of action for a particular violation, or more commonly, a statute may refer to a remedy or means of enforcing its substantive provisions, i.e., by way of an action. (*Lu, supra*, 50 Cal.4th at p. 597.)

Here, Penal Code section 396, subdivision (i), only states that a violation of this statute may be pursued as an UCL claim. It does not expressly state that a violation of this statute would create any independent cause of action; nor does it refer to an individual's right to bring an action to recover any actual damages that have been uniquely suffered by that individual. Rather, if a landlord violates Penal Code section 396, that landlord is subject to criminal penalties, i.e., guilty of a misdemeanor and is subject to a fine and/or imprisonment. Therefore, it does not appear that the Legislature manifested an intent to create a standalone cause of action for a violation of Penal Code section 396 outside of a UCL claim.

Furthermore, to the extent that Plaintiff argues that Penal Code section 396 is a standalone cause of action, it would be duplicative of Plaintiff's Third Cause of Action for Violation of the UCL¹, or alternatively, as originally argued by Defendant, it would be barred by the one-year statute of limitations proscribed by Code of Civil Procedure section 340.

Therefore, the Court sustains Defendant's demurrer to the First Cause of Action, without leave to amend.

ii. UCL/Implied Covenant of Good Faith and Fair Dealing Claims

Defendant argues that Plaintiff's UCL and Implied Covenant of Good Faith and Fair Dealing claims are both partially barred by the four-year statute of limitations as proscribed in Code of Civil Procedure section 337 and Business and Professions Code section 17208.

In Opposition, Plaintiff does not dispute that these claims are subject to a four-year statute of limitations period. Instead, Plaintiff argues that his claims are not entirely time-barred under the continuous accrual theory. On Reply, Defendant concedes that the continuous accrual theory would apply and that any allegation of wrongdoing occurring after June 27, 2021 would not be time-barred.

Therefore, the Court sustains Defendant's demurrer to the Third and Fourth Causes of Action, with leave to amend, to allow Plaintiff to state claims for violations occurring after June 27, 2021.

iii. Negligence Claims

Defendant argues that Plaintiff's Negligence Per Se and Negligence claims are both partially barred by the two-year statute of limitations as proscribed in Code of Civil Procedure section 335.1.

Defendant argues that even under the continuous accrual theory, the alleged tortious actions would have ceased on April 1, 2023, after the COVID-19 state of emergency was lifted and the

¹ In general, a demurrer can be sustained where one cause of action is duplicative of another cause of action. (*Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290; *Rodriguez v. Campbell Industries* (1978) 87 Cal.App.3d 494, 501 [finding demurrer was properly sustained without leave to amend as to cause of action that contained allegations of other causes and "thus add[ed] nothing to the complaint by way of fact or theory of recovery"].)

protections of Penal Code section 396 expired. Therefore, Defendant argues that to be timely, Plaintiff needed to file her negligence claims by April 1, 2025.

In Opposition, Plaintiff argues that his negligence claims are timely due to tolling by Judicial Council Emergency Rule 9, which served to toll all civil statutes of limitations exceeding 180 days from April 6, 2020 through October 1, 2020, which added 178 days to Plaintiff's deadline.

On Reply, Defendant argues that because Plaintiff admits that the last violation occurred on February 28, 2023, which was not within the tolling period proscribed by Emergency Rule 9, Plaintiff's negligence claims cannot receive any additional time for tolling.

In general, two branches of accrual rules apply to so-called "continuing wrongs": the "continuing violation doctrine" and the "theory of continuous accrual." (*Aryeh, supra*, 55 Cal.4th at p. 1197.) The continuing violation doctrine can render an entire course of conduct actionable, including acts otherwise outside the statute of limitations. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1056.) In contrast, and as discussed above, the theory of continuous accrual permits recovery of damages only for conduct occurring within each new limitation period. (*Aryeh, supra*, 55 Cal.4th at p. 1199; *Baxter v. State Teachers' Retirement System* (2017) 18 Cal.App.5th 340, 378-379.) For negligence claims, the theory of continuous accrual is applied. (*Orange County Water Dist. v. Sabic Innovative Plastics US, LLC* (2017) 14 Cal.App.5th 343, 396.)

Given that the theory of continuous accrual applies, the tolling period as provided in Emergency Rule 9 would only serve to toll violations occurring on or before October 1, 2020. However, even if the Emergency Rule 9 tolling period were applied, two years and 178 days from October 1, 2020 would fall on March 28, 2023. Furthermore, even if the latest violation date (February 28, 2023) was used, Plaintiff's negligence claims would have needed to be filed within two years, i.e., on or before February 28, 2025. Because the Complaint was filed several months after that date, i.e., on June 27, 2025, Plaintiff's negligence claims are therefore untimely.

Therefore, the Court sustains Defendant's demurrer to the Second and Sixth Cause of Action for Negligence Per Se and Negligence, without leave to amend.

Whether Plaintiff's Implied Covenant of Good Faith and Fair Dealing Claim is Proper?

Defendant argues that Plaintiff cannot assert a breach of the covenant of good faith and fair dealing claim based on a purported violation of a public policy interest which is not itself set forth within the terms of the underlying contract at issue itself, citing *Racine & Laramie, Ltd. v. Department of Parks & Recreation* (1992) 11 Cal.App.4th 1026, 1031 [holding that the covenant of good faith is read into contracts in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract's purpose.]

Defendant asserts that because the contract at issue was a lease agreement and because Plaintiff admits that he lived at the Premises (Compl. ¶¶ 33, 74), Plaintiff therefore received the benefit of what he contracted for. Notably, despite alleging that Defendant breached the implied covenant of good faith and fair dealing by "charging illegal, excessive rents" during the COVID-19 pandemic (see Compl. ¶ 75), Plaintiff does not allege that the lease agreement itself contains

an express or implied term prohibiting the charging of rent beyond lawful limits during a sudden state of emergency.

In Opposition, Plaintiff fails to address this argument. In general, “[c]ontentions are waived when a party fails to support them with reasoned argument and citations to authority. [Citations.]” (*Moulton Niguel Water Dist. v. Colombo* (2003) 111 Cal.App.4th 1210, 1215.)

Therefore, the Court sustains Defendant’s demurrer to the Fourth Cause of Action, with leave to amend.

Whether Plaintiff’s Unjust Enrichment Claim is Proper?

Defendant argues that Plaintiff’s unjust enrichment should be dismissed because it is not a separate cause of action.

In *Melchior v. New Line Productions, Inc.* (2003) 106 Cal.App.4th 779, 793, the Court of Appeal held that there is no cause of action in California for unjust enrichment. “The phrase ‘[u]njust [e]nrichment’ does not describe a theory of recovery, but an effect: the result of a failure to make restitution under circumstances where it is equitable to do so.” (*Ibid.*, citing *Lauriedale Associates, Ltd. v. Wilson* (1992) 7 Cal.App.4th 1439, 1448.) Unjust enrichment is “‘a general principle, underlying various legal doctrines and remedies,’” rather than a remedy itself. It is synonymous with restitution. (*Ibid.*, citing *Dinosaur Development, Inc. v. White* (1989) 216 Cal.App.3d 1310, 1314-1315.)

In Opposition, Plaintiff that in modern times, unjust enrichment has been allowed as a separate cause of action under a quasi-contract claim theory, citing *Elder v. Pacific Bell Telephone Co.* (2012) 205 Cal.App.4th 841, 857 (*Elder*). However, the *Elder* Court also acknowledged that “[t]he availability of relief for unjust enrichment in the nature of restitution raises legal and factual issues to be resolved at a later stage of the litigation, and is not before us on demurrer.” (*Ibid.*) Given this, the *Elder* Court simply declined to rule on the propriety of an unjust enrichment claim because that issue was not properly raised in that action.

Therefore, the Court sustains Defendant’s demurrer to the Fifth Cause of Action, without leave to amend.

Dated: May 27, 2026

Judge Kory Mathewson

TENTATIVE RULING FOR MAY 27, 2026

Department R12 - Judge Kory Mathewson

Alberto Gonzalez Gonzalez v. Jeffrey Walker, et al. – CIVSB2411582

Motion: Summary Judgment

Movant: Defendants Jeffrey Walker, Yvette Walker, and Walker Jeffery A & Ym Trust

Respondent: Plaintiff Melissa Nicole Griggs

RULING: The court GRANTS Plaintiff's request to continue the hearing as to this motion, conditioned on Plaintiff's counsel filing the appropriate affidavit (by June 5, 2026, 4PM) as is required by section 437c(h). Supplemental briefing is permitted, if necessary. Motion is continued to _____.

IF Plaintiff fails to file the appropriate affidavit by June 5, 2026, then the court DENIES Defendants' request for judicial notice as unnecessary; DENIES Plaintiff's request for continuance based on Plaintiff's counsel's failure to file the required affidavit and GRANTS Defendants' motion for summary judgment.

Evidentiary Basis for Ruling: Jeffrey Walker's Declaration; and Defendants' Undisputed Material Facts 2, 4, 10-16, 20, 27-29, 31.)

Plaintiff - to provide Order(s) and give Notice.

On December 16, 2025, Defendants filed the current motion for summary judgment, arguing primarily that none of them can be held accountable for Plaintiff's injuries because of the *Privette* doctrine. On March 10, 2026 Defendants filed an ex parte motion to continue trial, which was granted by this Court on March 18, 2026. On May 13, 2026 Plaintiff filed an opposition to Defendants' motion for summary judgment, but did not file a response to Defendants' separate statement or any evidence². On May 21, 2026 Defendants filed their reply.

Defendants' Request for Judicial Notice.

Along with its motion, Defendants seek judicial notice of six documents filed in this litigation, including Defendants' previous discovery motions. Judicial notice is unnecessary, as the pleadings are part of the Court's own docket.

Negligence/Premises Liability

"The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages. (*Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.) The owner of premises is "under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence." (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.) The elements of a claim for premises liability are (a) the defendant was owner, occupier, or lessor of premises; (b) the defendant was negligent in the use, maintenance, and/or management of the premises, and (c) negligence was the cause of injury,

² Pursuant to Code of Civil Procedure section 437c, subdivision (b)(2), Plaintiff's opposition is untimely. Pursuant to California Rules of Court, rule 3.1300, however, this Court has discretion to consider a late-filed opposition.

damage, loss or harm to plaintiff. (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.)

“The cases [also] require that an owner must have actual or constructive notice of the dangerous condition before incurring liability.” (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1203, 13.) That is true because a property owner is “not the insurer of the visitor’s personal safety” so “the owner’s actual or constructive knowledge of the dangerous condition is a key to establishing its liability. Although the owner’s lack of knowledge is not a defense, “[t]o impose liability for injuries suffered by an invitee due to [a] defective condition of the premises, the owner or occupier ‘must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises....’ ” (*Id.* at 1206.)

Plaintiff’s Request to Continue the Motion Pursuant to Code of Civil Procedure section 437c(h)

Plaintiff first asks for this motion to be continued pursuant to Code of Civil Procedure section 437c, subdivision (h). Under Code of Civil Procedure section 437c, subdivision (h), “if it appears from the affidavits submitted” by the opposing party “that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, [a] court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” (Code Civ. Proc., § 437c, subd. (h).) This provision “mandates a continuance of a summary judgment hearing upon a good faith showing by affidavit that a continuance is needed to obtain facts essential to justify opposition to the motion.” (*Fisher v. Larsen* (1982) 138 Cal.App.3d 627, 648.) However, “[t]he trial court need not grant a continuance where the proposed discovery is focused on matters beyond the scope of the dispositive issues framed by the pleadings.” (*Ace American Ins. Co. v. Walker* (2004) 121 Cal.App.4th 1017, 1023.)

For relief to be granted under subdivision (h), “[t]he affidavit must show: (1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts.” (*Wachs v. Curry* (1993) 13 Cal.App.4th 616, 623.)

Here, Plaintiff’s counsel does not provide an affidavit or declaration as is required by subdivision (h). Instead, he argues within Plaintiff’s opposition that:

Plaintiff’s counsel has been dealing with ongoing personal medical issues in addition to significant medical issues involving counsel’s son, which substantially interfered with counsel’s ability to complete investigation, discovery, witness preparation, and preparation of a full opposition to Defendants’ Motion for Summary Judgment. (Opp. at 4.)

Further, Plaintiff argues that because of these issues, he has not been able to complete the following necessary discovery:

- investigation into the resurfacing and painting of the concrete area where the ladder was placed;
- discovery concerning the uneven and slippery flooring condition;
- discovery regarding Defendants’ knowledge of the dangerous condition;

- discovery concerning retained control over the worksite and performance of the work;
- discovery regarding Plaintiff's employment status and contractor licensing issues;
- witness investigation and depositions; and
- property maintenance, resurfacing, and repair records.

(Opp. at 4-5.)

Defendants, in Reply, argue against a continuance because Plaintiff has already been given an extension since this motion was originally set to be heard on April 23, 2026, and an additional continuance would be prejudicial. Continuing the motion, however, would not be prejudicial because trial is now not scheduled to begin until March 27, 2027.

Further, as stated in Defendants' motion to continue trial, Defendants stated that "[t]he parties are still completing discovery, and the additional non-expert and expert discovery that remains to be completed is expected to provide the basis for the parties to entertain serious settlement discussions," and that "[a]ll pretrial deadlines, including discovery cut-offs, and expert witness designation deadlines, are to coincide with the new Trial date." (Mar. 10, 2026 Ex Parte Mot. to Cont. Trial.) Thus it appears both parties could benefit from additional time to complete discovery prior to trial, and that this motion may be premature.

As such, if this information included in Plaintiff's opposition was instead included in a sworn affidavit or declaration, the Court would continue the hearing on this motion to allow Plaintiff to conduct discovery as long as Plaintiff's counsel files an appropriate affidavit (by June 5, 2026) as required by C.C.P. § 437c(h). In the event that Plaintiff fails to file an affidavit, the Court provides a ruling below on the motion for summary judgment and will take effect on June 6, 2026.

Motion for Summary Judgment

Defendants' primary argument is that Plaintiff was an independent contractor when he was injured trimming the trees at the subject property, and as such he is ineligible for recovery. Given that Plaintiff has not submitted any evidence or contested any of Defendants' material facts, Defendants' motion is essentially unopposed.

On April 08, 2022, Plaintiff was working at the Walkers' property, when he used his own equipment, including his own ladder, to trim the Walkers' palm trees. (UMF 2, 10-11, 20.) While he was trimming the palm trees, Plaintiff fell off the ladder and sustained injuries. (UMF 27-29.) At the time, Plaintiff was an employee of Gonzalez Landscaping, which at the time of the incident, was unlicensed to trim trees. (UMF 4, 31.) At the time of the incident, neither Plaintiff nor his work was supervised or controlled by Defendants. (UMF 11-16.)

Defendants argue that the *Privette* doctrine applies, and extinguishes Plaintiff's claim against all Defendants. The *Privette* doctrine references the California Supreme Court's decision in *Privette v. Superior Court* (1993) 5 Cal.4th 689, which established that "an independent contractor's employee generally may not recover tort damages for work-related injuries from the contractor's hirer." (*Alvarez v. Seaside Transportation Services LLC* (2017) 13 Cal.App.5th 635,

639.) In the three decades since the California Supreme Court decided *Privette*, the California Supreme Court has “repeatedly reaffirmed the basic rule that a hirer is typically not liable for injuries sustained by an independent contractor or its workers while on the job.” (*Gonzalez v. Mathis* (2021) 12 Cal.5th 29, 41.) *Privette* relies on the premise that “[b]ecause the hirer presumptively delegates to the independent contractor the authority to determine the manner in which the work is to be performed, the contractor also assumes the responsibility to ensure that the worksite is safe, and the work is performed safely.” (*Ibid.*) “This rule applies even where the hirer was at least partially to blame due to its negligent hiring [Citation] or its failure to comply with preexisting statutory or regulatory workplace safety requirements.” (*Id.* at 41-42.)

The California Supreme Court, however, has identified at least two instances in which *Privette* would not apply: First, the “hirer will be liable where it exercises retained control over any part of the contractor’s work in a manner that affirmatively contributes to the worker’s injuries,” and second, where “injuries sustained by an independent contractor’s employee that were caused by a concealed hazard.” (*Id.* at 42.)

Here, it is undisputed that Gonzalez Landscaping was the employer of Plaintiff at the time he sustained the injury, and that Defendants retained no control over how Plaintiff performed his work. (UMF 4, 11-16.) As the Court of Appeal, First District just recently affirmed, the *Privette* doctrine “insulates all those in the hiring chain from tort liability for workplace injuries suffered by an independent contractor or an employee thereof or consultant thereto.” (*Cordero v. Ghilotti Constr. Co., Inc.* (2026) 119 Cal.App.5th 1105, 1113.)

As such, Defendants have met the threshold presumption that the *Privette* doctrine applies because it is undisputed that Plaintiff suffered an injury, he was an employee of an independent contractor at the time he suffered the injury, and that Defendants did not retain any control on how the work was performed. (UMF 4, 11-16.) For Plaintiff to then succeed, he must show one of the two exceptions to *Privette* applies. Since Plaintiff has not substantively filed an opposition, and cannot show an exception applies, the motion for summary judgment is granted.

Dated: May 27, 2026

Judge Kory Mathewson